

Chandrika Prasad Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 April 2012 · Writ - C No. 54088 of 2003 · **7.5 H.P. connection restored; bill objections under Supply Code**

HEADNOTE

On uncontested pleadings, the High Court directed reconnection of the petitioner's 7.5 H.P. supply within a month, treating as final a District Consumer Forum order that bills be raised on 7.5 H.P. Pending bills may be served; any dispute is to be decided by the Executive Engineer under the U.P. Electricity Supply Code, 2005, consistently with that Forum order.

FACTUAL SUMMARY

The petitioner held connection no. 4051/5433 at Village Naudhiya, Tehsil Sirathu, District Kaushambi, and paid bills for a 7.5 H.P. engine. The Executive Engineer billed him at 10 H.P. The District Consumer Forum, Kaushambi, in Complaint No. 160 of 2001, allowed the complaint ex parte on 22.01.2002, directing 7.5 H.P. billing and pump-set operation. No appeal followed. An undated unsigned reminder then demanded pending dues with a disconnection threat; supply was not restored. Respondents filed no reply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

reconnection; disputed bills

HOLDING

Where the licensee filed no reply, the Court treated as correct that a final District Consumer Forum order dated 22.01.2002 required 7.5 H.P. billing and pump-set operation, yet supply had not been restored. It directed that the 7.5 H.P. connection be reconnected within a month of production of a certified copy before the Executive Engineer (Distribution), Kaushambi. The department may serve pending bills; if the consumer disputes them or the arrears, he may object under the U.P. Electricity Supply Code, 2005, and the Executive Engineer shall decide the objection in accordance with law and in compliance with the Forum order.

FLAG order cites the 2005 Code generally; no clause number given

PRINCIPLE TAGS

no-retrospective-operation-of-supply-code-clause On uncontested pleadings, the High Court directed reconnection of the petitioner's 7.5 H.P. supply within a month, treating as final a District Consumer Forum order that bills be raised on 7.5 H.P. Pending bills may be served; any dispute is to be decided by the Executive Engineer under the U.P..

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM AND CORRECTNESS OF PENDING BILLS OR ARREARS

Left to objection under the U.P. Electricity Supply Code, 2005, to be decided by the Executive Engineer in accordance with law and the Consumer Forum order dated 22.01.2002.